

ALITO, J., dissenting

But, as we have said many times, it is not an “inexorable command.” *Payne*, 501 U.S., at 828; *Gamble*, 587 U.S., at 690–691. There are circumstances when past decisions must be overturned, but we begin with the presumption that we will follow precedent, and therefore when the Court decides to overrule, it has an obligation to provide an explanation for its decision.

This is imperative because the Court should have a body of *neutral* principles on the question of overruling precedent. The doctrine should not be transformed into a tool that favors particular outcomes.¹⁶

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What is the majority’s justification for overruling *Apodaca*? With no apparent appreciation of the irony, today’s majority, which is divided into four separate camps,¹⁷ criticizes the *Apodaca* majority as “badly fractured.” *Ante*, at 93. But many important decisions currently regarded as precedents were decided without an opinion of the Court.¹⁸

¹⁶ It is also important that the Court as a whole adhere to its “precedent[s] about precedent.” *Alleyne v. United States*, 570 U.S. 99, 134 (2013) (ALITO, J., dissenting). If individual Justices apply different standards for overruling past decisions, the overall effects of the doctrine will not be neutral.

¹⁷ Three Justices join the principal opinion in its entirety. Two Justices do not join Part IV–A, but each of these Justices takes a position not embraced by portions of the principal opinion that they join. See *ante*, at 112 (SOTOMAYOR, J., concurring in part) (disavowing principal opinion’s criticism of Justice White’s *Apodaca* opinion as “functionalist”); *ante*, at 129–131 (KAVANAUGH, J., concurring in part) (opining that the decision in this case does not apply on collateral review). And JUSTICE THOMAS would decide the case on entirely different grounds and thus concurs only in the judgment. See *ante*, at 132.

¹⁸ See, e.g., *National Federation of Independent Business v. Sebelius*, 567 U.S. 519 (2012); *Williams v. Illinois*, 567 U.S. 50 (2012); *J. McIntyre Machinery, Ltd. v. Nicastro*, 564 U.S. 873 (2011); *McDonald v. Chicago*, 561 U.S. 742 (2010); *Shady Grove Orthopedic Associates, P. A. v. Allstate Ins. Co.*, 559 U.S. 393 (2010); *Baze v. Rees*, 553 U.S. 35 (2008); *Crawford v. Marion County Election Bd.*, 553 U.S. 181 (2008); *Hamdan v. Rumsfeld*, 548 U.S. 557 (2006); *Medtronic, Inc. v. Lohr*, 518 U.S. 470 (1996);